

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-002
Amendments to Title 5 of the Chickasaw Nation Code
(Initial Appearance)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal procedure, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 5, Section 5-501.4 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; black language is current and shall remain the same):

SECTION 5-501.4

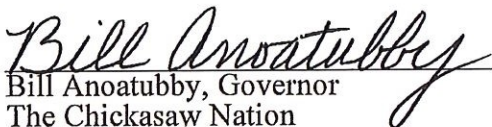
INITIAL APPEARANCE.

A. Initial Appearance. Initial Appearance is the bringing of an accused person before the Court, informing him of the charge against him and of his rights, receiving his plea and setting bail. Initial Appearance shall be held in open court upon the appearance of an accused in response to a Criminal Summons or Citation or, if the accused was arrested **in response to a warrant** and confined, within seventy-two (72) hours of the arrest, Saturdays, Sundays and legal holidays excepted. If the accused is arrested without a warrant and confined, the arresting **law enforcement** officer must complete an Affidavit of Probable Cause to Make Warrantless Custodial Arrest and present it to a judicial officer within forty-eight (48) hours, **Saturdays, Sundays and legal holidays excepted**, for determination of probable cause to detain the accused until arraignment is held.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on November 20, 2020 by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 20 2020

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-002
Amendments to Title 5 of the Chickasaw Nation Code
(Initial Appearance)

Explanation:

This resolution amends one section in Title 5, Section 5-501.4(A) to clarify this section and to comport with current practices of the Chickasaw Nation prosecutor's office and the Chickasaw Lighthorse Police Department.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature